North Delhi Power Ltd vs Delhi Electricity Regulatory ... on 9 December, 2010

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

DFR No. 1340 of 2011 (R.P) in A. No. 139 of 2010

Dated: 17th October, 2011

Present : Hon'ble Mr. Rakesh Nath, Technical Member
Hon'ble Mr. Justice P.S. Datta, Judicial Member

In the matter of:

C.P. Rai, Upbhogta Hitharath Sanstha .... Appellant (s)

Versus

BSES Yamuna Power Ltd. ..... Respondent (s)

Counsel for the Appellant (s) : Mr. C.P. Rai

Counsel for the Respondent (s) :

ORDER

This review application has been filed by one Mr. C.P., who is said to be a consumer of BYPL, which is a distribution licensee in Delhi, praying for review of order dated 09.12.2010 passed in Appeal No. 139 of 2010 on certain grounds.

We have heard Mr. C.P. Rai. It appears that this individual consumer was not a party to Appeal No. 139 of 2010 and the points canvassed by him in this review application do not form the subject-matter of Appeal No. 139 of 2010. That is to say, the issues raised by Mr. Rai are not at all related to the adjustment of security of the existing consumer. The principles of review, as they are under Order 47 Rule 1, are not at all applicable to this review application. As such we are of the opinion that this review application is not maintainable in law.

Contd.....P2 Accordingly, we dismiss this application as being not maintainable but without costs.

(Justice P.S. Datta) (Rakesh Nath)
Judicial Member Technical Member

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